‘She could not reveal the source of Indian currency which she was spending. She was also unable to give satisfactory explanation regarding her telephonic contacts from Samrat Hotel (one of the numbers found in her diary was that of ISRO scientist Sasikumaran, and this formed the first link to ISRO). Since she violated Rule 7 of the Foreigners Order, 1948 and Section 14 of the Foreigners Act, 1946, she was arrested and produced before the sub inspector of police, Vanchiyoor Police Station,’ read the case file.

D Mohana Rajan, Chief Judicial Magistrate, Ernakulam, considered these points:

- Whether the accused overstayed in India as alleged by the prosecution.
- If overstayed, whether there was justifiable cause for the same.
- What, if any, is the offence committed by the accused.
- If found guilty, what is the sentence to be imposed on the accused.

Advocate B S Prasad Gandhi, appearing for Mariam Rasheeda, argued that the ninetieth day of her stay in India fell only on 17 October 1994, on which day she already had an Indian Airlines ticket to return to Male. Indian Airlines direct flights from Trivandrum were cancelled indefinitely from 4 October 1994, due to plague epidemic in India. Mariam had approached inspector Vijayan, days before she was arrested, to apprise him of her situation, but the inspector maintained ‘a hostile attitude’ towards her.

So she got a confirmed ticket on Air Lanka on 17 October 1994. Vijayan confiscated both these tickets, along with Mariam’s passport as she was ‘not amenable to his illegal demands’. (Later Mariam gave an interview to *Savvy* magazine, accusing Vijayan of seeking sexual favours from her). Without the travel documents, she could not return to the Maldives.

The prosecution now brought in samples of the bigger conspiracy theory, saying Mariam was in touch with ‘an institution concerned with the defence of India and officials working in that institution.’ While the inspector was making inquiries, she shifted from Hotel Samrat to a house in